



REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY
REPUBLIC OF INDONESIA
NUMBER 5 OF 2025
ABOUT
DELEGATION OF AUTHORITY
DETERMINATION OF LAND RIGHTS AND LAND REGISTRATION ACTIVITIES

BY THE GRACE OF GOD ALMIGHTY

MINISTER OF AGRARIAN AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY
REPUBLIC OF INDONESIA,

Considering: a. that in order to increase the effectiveness and efficiency of land services to the community and ease of investment in the Batam Free Trade and Free Port Area and the Indonesian Capital Region, it is necessary to re-regulate the delegation of authority based on the size of the land area and details of the division of areas based on regional categories and special arrangements for the delegation of authority in the Batam Free Trade and Free Port Area and the Indonesian Capital Region;

b. that the Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the National Land Agency Number 16 of 2022 concerning the Delegation of Authority for Determining Land Rights and Land Registration Activities as amended by the Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the National Land Agency Number 2 of 2025 concerning Amendments to the Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the National Land Agency Number 16 of 2022 concerning the Delegation of Authority for Determining Land Rights and Land Registration Activities is no longer in accordance with legal requirements, so it needs to be replaced;

c. that based on the considerations as referred to in letters a and b, it is necessary to stipulate a Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the National Land Agency concerning the Delegation of Authority for Determining Land Rights and Land Registration Activities;

Considering: 1. Article 17 paragraph (3) of the 1945 Constitution of the Republic of Indonesia;

2. Law Number 5 of 1960 concerning Basic Agrarian Principles (State Gazette of 1960 Number 104, Supplement to the State Gazette Number 2043);
3. Law Number 39 of 2008 concerning State Ministries (State Gazette of the Republic of Indonesia of 2008 Number 166, Supplement to the State Gazette of the Republic of Indonesia Number 4916) as amended by Law Number 61 of 2024 concerning Amendments to Law Number 39 of 2008 concerning State Ministries (State Gazette of the Republic of Indonesia of 2024 Number 225, Supplement to the State Gazette of the Republic of Indonesia Number 6994);
4. Law Number 30 of 2014 concerning Government Administration (State Gazette of the Republic of Indonesia 2014 Number 292, Supplement to the State Gazette of the Republic of Indonesia Number 5601);
5. Government Regulation Number 24 of 1997 concerning Land Registration (State Gazette of the Republic of Indonesia 1997 Number 59, Supplement to the State Gazette of the Republic of Indonesia Number 3696);
6. Government Regulation Number 18 of 2021 concerning Management Rights, Land Rights, Apartment Units, and Land Registration (State Gazette of the Republic of Indonesia 2021 Number 28, Supplement to the State Gazette of the Republic of Indonesia Number 6630);
7. Presidential Regulation Number 176 of 2024 concerning the Ministry of Agrarian Affairs and Spatial Planning (State Gazette of the Republic of Indonesia 2024 Number 372);
8. Presidential Regulation Number 177 of 2024 concerning the National Land Agency (State Gazette of the Republic of Indonesia 2024 Number 373);
9. Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the National Land Agency Number 16 of 2020 concerning the Organization and Work Procedures of the Ministry of Agrarian Affairs and Spatial Planning/National Land Agency (State Gazette of the Republic of Indonesia 2020 Number 985);
10. Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the National Land Agency Number 17 of 2020 concerning the Organization and Work Procedures of the Regional Offices of the National Land Agency and Land Offices (State Gazette of the Republic of Indonesia 2020 Number 986);

DECIDE:

To stipulate: REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS AND SPATIAL PLANNING/HEAD OF THE NATIONAL LAND AGENCY CONCERNING THE DELEGATION OF AUTHORITY TO DETERMINE LAND RIGHTS AND LAND REGISTRATION ACTIVITIES.

PIG
GENERAL REQUIREMENTS

article 1

In this Ministerial Regulation, the following terms are defined as:

1. Delegation is the transfer of authority from a higher Government Agency and/or Official to a lower Government Agency and/or Official with responsibility and accountability being transferred entirely to the recipient of the delegation.
2. Sub-delegation is the delegation of authority in the form of Delegation to a Government Agency and/or Official one level below which is stated in the form of regulations carried out within one government environment.
3. Land Rights are rights obtained from a legal relationship between the rights holder and the land, including the space above the land and/or the space below the ground, to control, own, use and utilize, as well as maintain the land, the space above the land and/or the space below the ground.
4. Management Rights are the right to control from the state, the implementation authority of which is partly delegated to the holder of Management Rights.
5. State Land or Land directly controlled by the State, hereinafter referred to as State Land, is land that is not attached to any Land Rights, is not waqf land, is not customary land and/or is not a state asset/regional asset.
6. Determination of Land Rights is a Government determination to grant Land Rights through granting, extending the term of rights, and/or renewing rights.
7. Granting of Land Rights, hereinafter referred to as Granting, is a Government decision granting a Land Right on State Land or on Management Rights land.
8. Further Extension of the Term of Rights
called an Extension is an addition to the validity period of a right without changing the conditions in the Granting of the right.
9. Rights Renewal, hereinafter referred to as Renewal, is an addition to the validity period of a right after the term ends or before the extension period ends.
10. A Land Plot Map is the result of mapping 1 (one) or more plots of land on a sheet of paper with a certain scale, the boundaries of which have been determined by an authorized official and are used for announcing physical data.
11. A spatial map is a document resulting from measurements and mapping containing information on spatial objects that has been authorized by an authorized official and is used in land registration activities.
12. Thematic Area Maps are maps that contain information on control, ownership, use and utilization of land which can be supplemented with information

other regional themes within the requested area.

- 13. A measurement letter is a document containing physical data on a plot of land in the form of a map and description.
- 14. A Land Book is a document in the form of a list containing legal data and physical data on a land registration object for which rights already exist.
- 15. A certificate is a document that proves rights as referred to in Article 19 paragraph (2) letter c of Law Number 5 of 1960 concerning Basic Agrarian Principles for Land Rights, Management Rights, waqf land, ownership rights to apartment units, and mortgage rights, each of which has been recorded in the relevant Land Book.
- 16. Licensed Surveyor Services Office, hereinafter abbreviated as KJSB, is a business entity that has received a work permit from the Minister of Agrarian Affairs and Spatial Planning/Head of the National Land Agency as a forum for licensed surveyors to provide their services.
- 17. A Licensed Surveyor is a person who has expertise and/or skills in the field of surveying and mapping who is appointed and dismissed by the Minister.
- 18. The Ministry of Agrarian Affairs and Spatial Planning/National Land Agency, hereinafter referred to as the Ministry, is the government ministry in the field of land affairs and spatial planning Which organize affairs which is within the scope of government affairs in the field of public works.
- 19. The Minister of Agrarian Affairs and Spatial Planning/Head of the National Land Agency, hereinafter referred to as the Minister, is the minister who carries out government affairs in land matters.
- 20. The Regional Office of the National Land Agency, hereinafter referred to as the Regional Office, is a vertical agency of the Ministry in the province.
- 21. The Land Office is a vertical agency of the Ministry in district/city.

CHAPTER II
DELEGATION OF AUTHORITY

Article 2

- (1) Determination of Land Rights, including providing recommendations for re-determination of Land Rights and land registration activities are the authority of the Minister.
- (2) The Minister may delegate some authority through Delegation or Sub-delegation based on the following indicators:
 - a. geographical conditions and population density;
 - b. social conditions of the community; c. land area and number of services;
 - d. land value; and
 - e. potential risk of dispute or conflict.
- (3) The indicators as referred to in paragraph (2) are the basis for classifying the determination of regional categories in the context of delegating authority to determine land use rights.

business, building use rights, and use rights for legal entities consisting of:

- a. business use rights:
 1. category I with high indicator value;
 2. category II with moderate indicator values; and
 3. Category III with low indicator values.
 - b. building use rights and use rights:
 1. category I with very high indicator values;
 2. category II with high indicator values;
 3. category III with moderate indicator values; and
 4. Category IV with low indicator values.
- (4) The delegation of authority as referred to in paragraph (2) includes the following activities:
- a. Determination of Land Rights, including providing recommendations for the re-determination of Land Rights; and
 - b. land registration, including:
 1. land and space surveys, measurements and mapping;
 2. signing of the Land Plot Map, Spatial Map, and Measurement Letter; and
 3. signing of Land Books and Certificates, and/or ratification of service results.
- (5) The Minister may withdraw the authority that has been delegated as referred to in paragraph (4) in the following cases:
- a. the implementation of delegated authority results in ineffectiveness; and/or
 - b. changes in policies or laws and regulations.

Article 3

The signing of legal products originating from the delegation of authority as referred to in Article 2 paragraph (2) is carried out by the recipient of the Delegation or Subdelegation.

CHAPTER III

DELEGATION OF AUTHORITY TO DETERMINE LAND RIGHTS

Part One Minister's Authority

Article 4

- (1) The authority to determine land rights, including providing recommendations for the re-determination of land rights as referred to in Article 2 paragraph (4) letter a, may be partially delegated to the head of the Regional Office or the head of the Land Office through delegation of authority.
- (2) The provision of recommendations for the re-determination of Land Rights as referred to in paragraph (1) for the activity of re-determining Land Rights after 1 (one) cycle of the rights period has expired is given by:
 - a. The Minister, through the director general, has duties in the field of determining land rights and registration for legal entity subjects; or

- b. Head of Regional Office for the subject person individual.
- (3) The Minister makes a decision on the Determination of Land Rights whose authority is not delegated to the head of the Regional Office or the head of the Land Office as referred to in paragraph (1).

Part Two
Authority of the Head of the Regional Office

Paragraph 1
Right of ownership

Article 5

- (1) The Head of the Regional Office makes decisions regarding:
 - a. ownership rights for individuals over agricultural land with an area of more than 50,000 m² (fifty thousand square meters) and no more than the maximum area of agricultural land ownership for individuals;
 - b. ownership rights for individuals over non-agricultural land with an area of more than 5,000 m² (five thousand square meters) up to 15,000 m² (fifteen thousand square meters); and
 - c. ownership rights for religious bodies and/or social legal bodies that have been appointed based on Government Regulation Number 38 of 1963 concerning the Appointment of Legal Entities that Can Have Ownership Rights to Land with an area of up to 50,000 m² (fifty thousand square meters).
- (2) In the case of ownership rights for individuals over agricultural land that exceed the provisions as referred to in paragraph (1) letter a, then:
 - a. granted Land Rights in the form of cultivation rights;
And
 - b. the authority to grant business use rights as referred to in letter a is carried out in accordance with the provisions of this Ministerial Regulation.
- (3) In the case of ownership rights for individuals over non-agricultural land whose area exceeds the provisions as referred to in paragraph (1) letter b then:
 - a. granted Land Rights in the form of building use rights or use rights;
And
 - b. the authority to grant building use rights or usage rights as referred to in letter a is carried out in accordance with the provisions of this Ministerial Regulation.

Paragraph 2
Cultivation Rights

Article 6

- (1) The Head of the Regional Office shall determine the decision regarding the right to use land for legal entities on the land.

State or on land with Management Rights covering an area of up to 1,000,000 m² (one million square meters).

(2) The authority to make decisions regarding business use rights as referred to in paragraph (1) is only given to the head of the Regional Office which falls into category II and category III.

(3) The list of divisions of areas based on categories as referred to in paragraph (2) is listed in Attachment I which is an integral part of this Ministerial Regulation.

Paragraph 3 Building rights

Article 7

(1) The Head of the Regional Office makes decisions regarding:
a. building use rights for individuals on State Land or on Management Rights land with an area of more than 10,000 m² (ten thousand square meters) up to 20,000 m² (twenty thousand square meters); and

b. building use rights for legal entities on State Land or on Management Rights land with the following provisions:

1. Category I for areas up to 30,000 m² (thirty thousand square meters); 2. Category II for areas up to 50,000 m² (fifty thousand square meters); 3. Category III for areas up to 100,000 m² (one hundred thousand square meters); and

4. Category IV for areas up to 250,000 m² (two hundred and fifty thousand square meters).

(2) In the case of granting building use rights to individuals with an area exceeding the provisions as referred to in paragraph (1) letter a, then: a. the granting of building use rights must be in the form of a legal entity and accompanied by a business permit; and

b. the authority to grant building use rights as referred to in letter a is carried out in accordance with the provisions of this Ministerial Regulation.

(3) The provisions for the transfer of building use rights to legal entities on State Land or on land with Management Rights as referred to in paragraph (1) letter b are excluded for the Batam Free Trade and Free Port Area and the Indonesian Capital Region, with the following provisions:

a. for plots of land in the Batam Free Trade and Free Port Area, the head of the Regional Office shall determine decisions regarding:
1. building use rights for legal entities on State Land covering an area of up to

250,000 m² (two hundred and fifty thousand square meters); and

- 2. building use rights for legal entities on land Management Rights with an area of more than 1,000,000 m² (one million square meters) to 2,000,000 m² (two million square meters),
And
 - b. for land plots in the Indonesian Capital Region, the head of the Regional Office determines all decisions regarding building use rights for legal entities on land with the Indonesian Capital Management Rights.
- (4) The list of divisions of regions based on categories as referred to in paragraph (1) is listed in Attachment II which is an integral part of this Ministerial Regulation.

Paragraph 4
Right of Use

Article 8

- (1) The Head of the Regional Office makes decisions regarding:
- a. right of use for individuals on State Land or on land Management Rights on agricultural land with an area of more than 50,000 m² (fifty thousand square meters) up to 250,000 m² (two hundred and fifty thousand square meters); b. right of use for individuals on State Land or on land Management Rights on non-agricultural land with an area of more than 10,000 m² (ten thousand square meters) up to 20,000 m² (twenty thousand square meters);
 - c. usage rights for legal entities on State Land or on Management Rights land on agricultural land and non-agricultural land with the following provisions:
 - 1. Category I for areas up to 30,000 m² (thirty thousand square meters); 2. Category II for areas up to 50,000 m² (fifty thousand square meters); 3. Category III for areas up to 100,000 m² (one hundred thousand square meters); and
 - 4. Category IV for areas up to 250,000 m² (two hundred and fifty thousand square meters).
- (2) In the case of granting the right to use agricultural land and non-agricultural land to individuals whose area exceeds the provisions as referred to in paragraph (1) letters a and b then:
- a. the granting of usage rights must be in the form of a legal entity and accompanied by a business permit; and
 - b. the authority to grant the right of use as referred to in letter a is carried out in accordance with the provisions of this Ministerial Regulation.
- (3) Provisions regarding the transfer of usage rights to legal entities on State Land or on Land Rights
Management of agricultural land and non-agricultural land as referred to in paragraph (1) letter c is excluded for Free Trade Areas and Free Ports.

Batam and the Indonesian Capital Region, with the following provisions:

- a. for land plots in the Batam Free Trade and Free Port Area, the Head of the Regional Office shall determine decisions regarding:
 1. usage rights for legal entities on State Land for non-agricultural land with an area of up to 250,000 m² (two hundred and fifty thousand square meters); and
 2. right of use for legal entities on land Management Rights for non-agricultural land with an area of more than 1,000,000 m² (one million square meters) up to 2,000,000 m² (two million square meters), and
 - b. for land plots in the Indonesian Capital Region, the head of the Regional Office determines all decisions regarding usage rights for legal entities on land Management Rights for the Indonesian Capital Region for agricultural land and non-agricultural land.
- (4) The list of divisions of areas based on categories as referred to in paragraph (1) letter c is listed in Attachment II which is an integral part of this Ministerial Regulation.

Paragraph 5

Land Object of Land Redistribution

Article 9

The Head of the Regional Office makes decisions regarding:

- a. determining land controlled by the state to be the object of land redistribution; And
- b. determination of expenditure from land redistribution objects for lands that have been designated as *land reform object lands*.

Part Three

Authority of the Head of the Land Office

Paragraph 1

Right of ownership

Article 10

(1) The Head of the Land Office makes decisions regarding:

- a. ownership rights for individuals over agricultural land with an area of no more than 50,000 m² (fifty thousand square meters);
- b. ownership rights for individuals over non-agricultural land with an area of no more than 5,000 m² (five thousand square meters); and
- c. ownership rights to land in the context of implementing:
 1. transmigration;
 2. land redistribution;
 3. land consolidation; and
 4. other programs financed by the state revenue and expenditure budget and/or regional revenue and expenditure budget.

- (2) The Head of the Land Office issues a land acquisition permit land with ownership status for: a. state bank; b. agricultural cooperatives; and c. Religious bodies and appointed social legal bodies have ownership rights to land.

Paragraph 2
Cultivation Rights

Article 11

- (1) The Head of the Land Office shall make a decision regarding the right to cultivate for individuals on State Land or on Management Rights land with an area of 50,000 m² (fifty thousand square meters) to 250,000 m² (two hundred and fifty thousand square meters).
- (2) In the case of the right to use a business for an individual exceeding the provisions as referred to in paragraph (1), then: a. the granting of the right to use a business must be in the form of a legal entity and accompanied by a business permit; and
- b. the authority to grant business use rights as referred to in letter a is carried out in accordance with the provisions of this Ministerial Regulation.

Paragraph 3
Building rights

Article 12

- (1) The Head of the Land Office makes decisions regarding:
- a. building use rights for individuals on State Land or on Management Rights land with an area of up to 10,000 m² (ten thousand square meters);
- b. building use rights for legal entities in the context of implementing housing construction for low-income communities in accordance with the provisions of laws and regulations; and
- c. extension or renewal of building use rights resulting from separation, division or merger land plots by/and still in the name of a housing management company with a land area resulting from separation, division or merger of up to 600 m² (six hundred square meters).
- (2) In addition to making decisions as referred to in paragraph (1), for the Batam Free Trade Area and Free Port, the Head of the Land Office makes decisions regarding building use rights for legal entities on land with Management Rights with an area of up to 1,000,000 m² (one million square meters).

Paragraph 4
Right of Use

Article 13

- (1) The Head of the Land Office makes decisions regarding:
- a. usage rights for individuals on State Land or on Management Rights for agricultural land with an area of up to 50,000 m² (fifty thousand square meters);
 - b. usage rights for individuals on State Land or on Management Rights for non-agricultural land with an area of up to 10,000 m² (ten thousand square meters);
 - c. right of use during use by central government agencies, regional governments, village governments, and representatives of foreign countries, and representatives of international bodies; and
 - d. extension or renewal of the right to use the results of the separation, division or merger of land plots by/and still in the name of the housing management company with an area of land resulting from the separation, division or merger of up to 600 m² (six hundred square meters).
- (2) In addition to making the decision as referred to in paragraph (1), for the Batam Free Trade Area and Free Port, the Head of the Land Office makes a decision on the right of use for legal entities on land Management Rights for non-agricultural land with an area of up to 1,000,000 m² (one million square meters).

CHAPTER IV

DELEGATION OF LAND REGISTRATION AUTHORITY

Part One

Land and Spatial Survey, Measurement, and Mapping

Article 14

- (1) Sporadic land measurement is the responsibility of the head of the Land Office.
- (2) In order to optimize manpower, measuring equipment, and take into account the mastery of technology by measuring officers, then:
- a. measurement of a plot of land with an area of up to 25 ha (twenty five hectares) is carried out by the Land Office;
 - b. measurement of a plot of land with an area of more than 25 ha (twenty five hectares) up to 1,000 ha (one thousand hectares) is carried out by the Regional Office; and
 - c. Measurement of a plot of land with an area of more than 1,000 ha (one thousand hectares) is carried out by the Ministry.
- (3) Measurement in the context of granting usage rights during use to central government agencies, regional governments, village governments, state representatives

foreign, and representatives of international bodies are carried out by the Land Office.

- (4) The use of the measurement results carried out by the Regional Office and Ministry as referred to in paragraph (2) letters b and c shall be submitted to the head of the Land Office.
- (5) Submission of measurement applications as referred to in paragraph (2) is addressed to authorized officials according to the scope of authority.
- (6) In the event of limited human resources, the Director General, head of the Regional Office, or head of the Land Office may assign KJSB or a Licensed Surveyor to carry out land plot measurements.
- (7) The Director General who has duties and functions in the field of surveying and mapping can sub-delegate the authority to measure land plots to the head of the Regional Office or the head of the Land Office with the following considerations:
 - a. strategic, mass, or other programs;
 - b. geographical conditions;
 - c. social conditions of the community;
 - d. area of land or number of plots; and/or
 - e. potential risk of dispute or conflict.
- (8) The implementation of land area measurements as referred to in paragraph (6) is supervised by the Subdelegator and the results are approved by the head of the Land Office, head of the Regional Office, or director general who has duties and functions in the field of surveying and mapping according to the authority as referred to in paragraph (2).

Part Two
Signing of Land Plot Map, Spatial Map,
and Measurement Letter

Article 15

- (1) Land Plot Maps issued by the Ministry are signed by the director who has duties in the field of land and space measurement and mapping.
- (2) Spatial maps issued by the Ministry are signed by the director who has duties in the field of measuring and mapping areas and space.
- (3) Thematic maps of areas published by the Ministry are signed by the director of the field of land and space thematic surveys and mapping.
- (4) Land Area Maps, Spatial Maps and Thematic Area Maps issued by the Regional Office are signed by the head of the division who has duties and functions in the field of surveying and mapping.
- (5) In the event that the head of the division who has duties and functions in the field of surveying and mapping as referred to in paragraph (4) has changed functional positions, the Land Plot Map, Spatial Map and Thematic Map of the Area issued by the Regional Office

signed by the functional officer of the middle cadastral administrator.

- (6) Land Plot Maps, Spatial Maps and Measurement Letters issued by the Land Office are signed by the section head who has duties and functions in the field of surveying and mapping.
- (7) In the case of the section head who has duties and functions in the field of surveying and mapping as referred to in paragraph (6) has changed functional positions, Map Land Plots, Spatial Maps, and Measurement Letters issued by the Land Office are signed by junior cadastral administrator functional officials.
- (8) In the case of measurements carried out by KJSB or a Licensed Surveyor, the Land Area Map and Spatial Map are signed by the Licensed Surveyor and acknowledged by the Head of KJSB.
- (9) Signing of the Land Plot Map with Measurement Letter and Spatial Map with Measurement Letter which is the authority of the Land Office can be done at the same time.

Article 16

- (1) Authorized officials as intended in Article 15 paragraph (1), paragraph (2), paragraph (3), paragraph (4), and paragraph (6) can sub-delegate the signing of Land Plot Maps, Spatial Maps, or Measurement Letters to structural officials who have duties and functions in the field of surveying and mapping at a lower level or to functional cadastral management officials.
- (2) The delegation of authority as referred to in paragraph (1) is carried out in the context of implementing strategic, mass land activity programs or other programs.
- (3) The appointment of an official as a Subdelegate as referred to in paragraph (1) is stated in the decision of the official granting the Subdelegation according to his authority.
- (4) The format of the decision of the official granting the Sub-delegation as referred to in paragraph (3) is implemented in accordance with the provisions of laws and regulations regarding guidelines for official documents within the Ministry.

Part Three

Authority to Sign Land Certificates and Title Deeds

Article 17

- (1) In the first sporadic land registration activity, the Land Book and Certificate are signed by the head of the Land Office.
- (2) In systematic land registration activities, the Land Book and Certificate are signed by the head of the adjudication committee.
- (3) In land registration data maintenance activities, Land Books, Certificates, and/or confirmation of service results are signed by the head of the Land Office and the authority can be sub-delegated to the head of the section who has duties and functions in the field.

determination of land rights and registration and/or functional officials in the field of determination of land rights and registration.

Article 18

- (1) If the Land Office has a service workload of more than 1,000 (one thousand) activities per month, the head of the Land Office can sub-delegate the authority to sign Land Books, Certificates and/or ratify the results of land registration data maintenance services to the section head who has duties and functions in the field of determining land rights and registration.
- (2) The signing authority of the section head as referred to in paragraph (1) for land registration data maintenance services includes the following activities:
 - a. mortgage services include mortgage registration, mortgage transfer, creditor name change (name change), mortgage deletion (roya) or mortgage data correction; b. registration of ownership rights for apartment units;
 - c. services for signing land information services in the form of checking certificates, land registration certificates or other information;
 - d. recording and lifting of blocks or seizures; and
 - e. other services.
- (3) If the Land Office has a service workload of more than 3,000 (three thousand), the head of the Land Office may sub-delegate some of the work.
signing authority for activities as referred to in paragraph (2) to 1 (one) or more functional officials in the field of land rights determination and registration.
- (4) In the case where land registration data maintenance services have been carried out electronically, the Head of the Land Office may sub-delegate the signing of Land Books, Certificates and/or service results to:
 - a. head of section who has duties and functions in the field of determining land rights and registration;
 - and/or b. 1
(one) or more functional officials in the field of determining land rights and registration.
- (5) Appointment of officials as referred to in paragraph (1) and paragraph (4) is stated in the decision of the official granting the Sub-delegation according to authority with a copy sent to the head of the Regional Office and the Minister.
- (6) The format of the decision of the official granting the Sub-delegation as referred to in paragraph (5) is implemented in accordance with the provisions of laws and regulations regarding guidelines for official documents within the Ministry.

Article 19

The workload as referred to in Article 18 paragraph (1) and paragraph (3) is calculated based on the average of all land registration service activities during the last 6 (six) months.

Article 20

- (1) Changes in ownership rights to building use rights are carried out:
 - a. in the context of an auction; or
 - b. with the release of rights to become state land and processed through granting rights.
- (2) The authority to grant rights as referred to in paragraph (1) is implemented in accordance with the provisions of this Ministerial Regulation.

CHAPTER V
SANCTIONS

Article 21

- (1) The recipient of the delegation of authority for Determination of Land Rights and land registration activities is obliged to carry out the delegation in accordance with his authority based on this Ministerial Regulation.
- (2) If the recipient of the delegation of authority intentionally does not carry out the obligations as referred to in paragraph (1), he will be subject to sanctions in the form of disciplinary punishment in accordance with the provisions of statutory regulations.

CHAPTER VI
TRANSITIONAL PROVISIONS

Article 22

- When this Ministerial Regulation comes into force:
- a. business use rights, building use rights, or use rights that have been granted before the enactment of this Ministerial Regulation:
 - 1. remains valid until the validity period of the business use right, building use right or use right expires; And
 - 2. Extension or renewal of business use rights, building use rights, or use rights as referred to in letter a shall be carried out in accordance with the provisions of this Ministerial Regulation.
 - b. Applications for determination of Land Rights and changes in ownership rights to building use rights which have been received and are in process before the enactment of this Ministerial Regulation, are processed based on this Ministerial Regulation.

CHAPTER VII
CLOSING

Article 23

- When this Ministerial Regulation comes into force:
- a. Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the National Land Agency Number 16 of 2022 concerning

Delegation of Authority for Determining Land Rights and Land Registration Activities (State Gazette of the Republic of Indonesia 2022 Number 1077); and

- b. Regulation of the Minister of Agrarian Affairs and Spatial Planning/ Head of the National Land Agency Number 2 of 2025 concerning Amendments to the Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the National Land Agency Number 16 of 2022 concerning Delegation of Authority for Determining Land Rights and Land Registration Activities (State Gazette of the Republic of Indonesia 2025 Number 124),
revoked and declared invalid.

Article 24

This Ministerial Regulation comes into force on the date enacted.

So that everyone knows, it is ordered that this Ministerial Regulation be promulgated by placing it in the State Gazette of the Republic of Indonesia.



Established in Jakarta on
April 28, 2025

MINISTER OF AGRARIAN AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY
REPUBLIC OF INDONESIA,

☞

NUSRON WAHID

Promulgated in Jakarta on ☞

DIRECTOR GENERAL
LEGISLATION
MINISTRY OF LAW OF THE REPUBLIC OF INDONESIA,

☞

DHAHANA PUTRA

STATE GAZETTE OF THE REPUBLIC OF INDONESIA YEAR 2025 NUMBER ☞

APPENDIX I

REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY
REPUBLIC OF INDONESIA
NUMBER 5 OF 2025
ABOUT
DELEGATION OF AUTHORITY TO DETERMINE RIGHTS
LAND AND LAND REGISTRATION ACTIVITIES

LIST OF REGIONAL DIVISIONS BASED ON REGIONAL CATEGORIES
IN THE FRAMEWORK OF DETERMINING CIVIL USE RIGHTS FOR LEGAL ENTITIES
ON STATE LAND OR ON LAND WITH MANAGEMENT RIGHTS

No.	Province	Category	Information
1. Special Region of Jakarta		I	-
2. Banten		I	-
3. Special Region of Yogyakarta		I	-
4. West Java		I	-
5. Bali		I	-
6. Central Java		I	-
7. East Java		I	-
8. Riau Islands		I	-
		II	up to 1,000,000 m ² (one million square meters)
9. West Nusa Tenggara		II	up to 1,000,000 m ² (one million square meters)
10. North Sumatra		II	up to 1,000,000 m ² (one million square meters)
11. Lampung		II	up to 1,000,000 m ² (one million square meters)
12. South Sulawesi		II	up to 1,000,000 m ² (one million square meters)
13. West Sumatra		II	up to 1,000,000 m ² (one million square meters)
14. North Sulawesi		II	up to 1,000,000 m ² (one million square meters)
15. South Sumatra		II	up to 1,000,000 m ² (one million square meters)
16. East Nusa Tenggara		II	up to 1,000,000 m ² (one million square meters)
17. South Kalimantan		II	up to 1,000,000 m ² (one million square meters)
18. Bangka Belitung Islands		III	up to 1,000,000 m ² (one million square meters)
19. Aceh		III	up to 1,000,000 m ² (one million square meters)
20. Papua Mountains		III	up to 1,000,000 m ² (one million square meters)
21. East Kalimantan		III	up to 1,000,000 m ² (one million square meters)
22. Gorontalo		III	up to 1,000,000 m ² (one million square meters)

No.	Province	Category	Information
23.	Central Papua	III	up to 1,000,000 m ² (one million square meters)
24.	Jambi	III	up to 1,000,000 m ² (one million square meters)
25.	West Sulawesi	III	up to 1,000,000 m ² (one million square meters)
26.	Riau	III	up to 1,000,000 m ² (one million square meters)
27.	West Kalimantan	III	up to 1,000,000 m ² (one million square meters)
28.	Southeast Sulawesi	III	up to 1,000,000 m ² (one million square meters)
29.	Bengkulu	III	up to 1,000,000 m ² (one million square meters)
30.	Papua	III	up to 1,000,000 m ² (one million square meters)
31.	Maluku	III	up to 1,000,000 m ² (one million square meters)
32.	Central Sulawesi	III	up to 1,000,000 m ² (one million square meters)
33.	North Maluku	III	up to 1,000,000 m ² (one million square meters)
34.	North Kalimantan	III	up to 1,000,000 m ² (one million square meters)
35.	Southwest Papua	III	up to 1,000,000 m ² (one million square meters)
36.	West Papua	III	up to 1,000,000 m ² (one million square meters)
37.	South Papua	III	up to 1,000,000 m ² (one million square meters)
38.	Central Kalimantan	III	up to 1,000,000 m ² (one million square meters)

MINISTER OF AGRARIAN AND SPATIAL PLANNING/
HEAD OF LAND AGENCY
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APPENDIX II
REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY
REPUBLIC OF INDONESIA
NUMBER 5 OF 2025
ABOUT
DELEGATION OF AUTHORITY TO DETERMINE RIGHTS
LAND AND LAND REGISTRATION ACTIVITIES

LIST OF REGIONAL DIVISIONS BASED ON REGIONAL CATEGORIES
IN THE FRAMEWORK OF DETERMINING BUILDING USE RIGHTS AND USE RIGHTS
FOR LEGAL ENTITIES ON STATE LAND OR IN THE LAND
MANAGEMENT RIGHTS

I. Category I for Land Area up to 30,000 m² (Thirty Thousand Square Meters)

No.	Province Name	Regency/City	Location	Category	Authority		
1.	Bali	Buleleng Regency			I	up to 30,000 m² (thirty thousand square meters)	
2.	Bali		Badung Regency		I	up to 30,000 m² (thirty thousand square meters)	
3.	Bali		Denpasar City		I	up to 30,000 m² (thirty thousand square meters)	
4.	Banten		Tangerang Regency		I	up to 30,000 m² (thirty thousand square meters)	
5.	Banten		South Tangerang City		I	up to 30,000 m² (thirty thousand square meters)	
6.	Banten		Tangerang City		I	up to 30,000 m² (thirty thousand square meters)	
7.	Banten		Cilegon City		I	up to 30,000 m² (thirty thousand square meters)	
8.	Banten		Serang City		I	up to 30,000 m² (thirty thousand square meters)	
9.	Special Region of Jakarta		Administrative City West Jakarta		I	up to 30,000 m² (thirty thousand square meters)	
10.	Special Region of Jakarta		Administrative City South Jakarta		I	up to 30,000 m² (thirty thousand square meters)	
11.	Special Region of Jakarta		Administrative City North Jakarta		I	up to 30,000 m² (thirty thousand square meters)	
12.	Special Region of Jakarta		Administrative City East Jakarta		I	up to 30,000 m² (thirty thousand square meters)	

No.	Province Name	Regency/City Location	Category	Authority	
13.	Special Region of Jakarta	Administrative City Central Jakarta	I	up to 30,000 m ² (thirty thousand square meters)	
14.	West Java	Bekasi Regency	I	up to 30,000 m ² (thirty thousand square meters)	
15.	West Java	Bogor Regency I	I	up to 30,000 m ² (thirty thousand square meters)	
16.	West Java	Bogor Regency II	I	up to 30,000 m ² (thirty thousand square meters)	
17.	West Java	Bekasi City	I	up to 30,000 m ² (thirty thousand square meters)	
18.	West Java	Bandung	I	up to 30,000 m ² (thirty thousand square meters)	
19.	West Java	Depok City	I	up to 30,000 m ² (thirty thousand square meters)	
20.	West Java	Bandung Regency	I	up to 30,000 m ² (thirty thousand square meters)	
21.	West Java	Karawang Regency	I	up to 30,000 m ² (thirty thousand square meters)	
22.	Central Java	Semarang City	I	up to 30,000 m ² (thirty thousand square meters)	
23.	Central Java	Karanganyar Regency	I	up to 30,000 m ² (thirty thousand square meters)	
24.	Central Java	Semarang Regency	I	up to 30,000 m ² (thirty thousand square meters)	
25.	East Java	Sidoarjo Regency	I	up to 30,000 m ² (thirty thousand square meters)	
26.	East Java	Surabaya City I	I	up to 30,000 m ² (thirty thousand square meters)	
27.	East Java	Gresik Regency	I	up to 30,000 m ² (thirty thousand square meters)	
28.	East Java	Surabaya City II	I	up to 30,000 m ² (thirty thousand square meters)	
29.	Riau	Pekanbaru City	I	up to 30,000 m ² (thirty thousand square meters)	

No.	Province Name	Regency/City	Location Category	Authority		
30.	South Sulawesi	Makassar City		I	up to 30,000 m ² (thirty thousand square meters)	
31.	Sumatra South	Palembang City		I	up to 30,000 m ² (thirty thousand square meters)	
32.	North Sumatra	Medan City		I	up to 30,000 m ² (thirty thousand square meters)	
33.	North Sumatra	Deli Serdang Regency		I	up to 30,000 m ² (thirty thousand square meters)	

II. Category II for Land Area up to 50,000 m² (Fifty Thousand Square Meters)

No.	Province Name	Regency/City	Location Category	Authority		
1.	Bali	Tabanan Regency		II	up to 50,000 m ² (fifty thousand square meters)	
2.	Bali	Gianyar Regency		II	up to 50,000 m ² (fifty thousand square meters)	
3.	Banten	Serang Regency		II	up to 50,000 m ² (fifty thousand square meters)	
4.	Special Region of Yogyakarta	Bantul Regency		II	up to 50,000 m ² (fifty thousand square meters)	
5.	Special Region of Yogyakarta	Sleman Regency		II	up to 50,000 m ² (fifty thousand square meters)	
6.	Jambi	Jambi City		II	up to 50,000 m ² (fifty thousand square meters)	
7.	West Java	Bogor City		II	up to 50,000 m ² (fifty thousand square meters)	
8.	West Java	Bandung Regency West		II	up to 50,000 m ² (fifty thousand square meters)	
9.	West Java	Cirebon Regency		II	up to 50,000 m ² (fifty thousand square meters)	

No.	Province Name	Regency/City Location	Category	Authority
10.	West Java	Tasikmalaya City	II	up to 50,000 m ² (fifty thousand square meters)
11.	West Java	Garut Regency	II	up to 50,000 m ² (fifty thousand square meters)
12.	West Java	Purwakarta Regency	II	up to 50,000 m ² (fifty thousand square meters)
13.	West Java	Indramayu Regency	II	up to 50,000 m ² (fifty thousand square meters)
14.	West Java	Subang Regency	II	up to 50,000 m ² (fifty thousand square meters)
15.	Central Java, Banyumas	Regency	II	up to 50,000 m ² (fifty thousand square meters)
16.	Central Java	Batang Regency	II	up to 50,000 m ² (fifty thousand square meters)
17.	Central Java, Boyolali	Regency	II	up to 50,000 m ² (fifty thousand square meters)
18.	Central Java	Cilacap Regency	II	up to 50,000 m ² (fifty thousand square meters)
19.	Central Java	Kendal Regency	II	up to 50,000 m ² (fifty thousand square meters)
20.	Central Java, Klaten	Regency	II	up to 50,000 m ² (fifty thousand square meters)
21.	Central Java	Kudus Regency	II	up to 50,000 m ² (fifty thousand square meters)
22.	Central Java, Pati	Regency	II	up to 50,000 m ² (fifty thousand square meters)

No.	Province Name	Regency/City Location	Category	Authority
23.	Central Java	Sragen Regency	II	up to 50,000 m ² (fifty thousand square meters)
24.	Central Java	Sukoharjo Regency	II	up to 50,000 m ² (fifty thousand square meters)
25.	Central Java	Tegal Regency	II	up to 50,000 m ² (fifty thousand square meters)
26.	Central Java	Surakarta City	II	up to 50,000 m ² (fifty thousand square meters)
27.	East Java	Banyuwangi Regency	II	up to 50,000 m ² (fifty thousand square meters)
28.	East Java	Malang City	II	up to 50,000 m ² (fifty thousand square meters)
29.	East Java	Mojokerto Regency	II	up to 50,000 m ² (fifty thousand square meters)
30.	East Java	Kediri Regency	II	up to 50,000 m ² (fifty thousand square meters)
31.	East Java	Jember Regency	II	up to 50,000 m ² (fifty thousand square meters)
32.	East Java	Lamongan Regency	II	up to 50,000 m ² (fifty thousand square meters)
33.	East Java	Tuban Regency	II	up to 50,000 m ² (fifty thousand square meters)
34.	East Java	Malang Regency	II	up to 50,000 m ² (fifty thousand square meters)
35.	West Kalimantan	Kubu Raya Regency	II	up to 50,000 m ² (fifty thousand square meters)

No.	Province Name	Regency/City Location	Category	Authority
36.	West Kalimantan	City of Pontianak	II	up to 50,000 m² (fifty thousand square meters)
37.	East Kalimantan	Balikpapan City	II	up to 50,000 m² (fifty thousand square meters)
38.	East Kalimantan	Samarinda City	II	up to 50,000 m² (fifty thousand square meters)
39.	Lampung	Bandar Lampung City	II	up to 50,000 m² (fifty thousand square meters)
40.	Lampung	Lampung Regency South	II	up to 50,000 m² (fifty thousand square meters)
41.	West Nusa Tenggara	Lombok Regency West	II	up to 50,000 m² (fifty thousand square meters)
42.	Riau	Kampar Regency	II	up to 50,000 m² (fifty thousand square meters)
43.	South Sulawesi	Gowa Regency	II	up to 50,000 m² (fifty thousand square meters)
44.	South Sulawesi	Maros Regency	II	up to 50,000 m² (fifty thousand square meters)
45.	Southeast Sulawesi	Kendari City	II	up to 50,000 m² (fifty thousand square meters)
46.	West Sumatra	Padang City	II	up to 50,000 m² (fifty thousand square meters)

III. Category III for Land Area up to 100,000 m² (One Hundred Thousand Square Meters)

No.	Province Name	Regency/City Location	Category	Authority
1.	Aceh	Banda Aceh City	III	up to 100,000 m² (one hundred thousand square meters)

No.	Province Name	Regency/City Location	Category	Authority
2.	Bali	Jembrana Regency	III	up to 100,000 m ² (one hundred thousand square meters)
3.	Bali	Karangasem Regency	III	up to 100,000 m ² (one hundred thousand square meters)
4.	Bangka Belitung, Pangkalpinang	City	III	up to 100,000 m ² (one hundred thousand square meters)
5.	Bengkulu	Bengkulu City	III	up to 100,000 m ² (one hundred thousand square meters)
6.	Gorontalo	Gorontalo City	III	up to 100,000 m ² (one hundred thousand square meters)
7.	Jambi	Muaro Jambi Regency	III	up to 100,000 m ² (one hundred thousand square meters)
8.	South Kalimantan	Banjarmasin City	III	up to 100,000 m ² (one hundred thousand square meters)
9.	South Kalimantan	Banjarbaru City	III	up to 100,000 m ² (one hundred thousand square meters)
10.	South Kalimantan	Banjar Regency	III	up to 100,000 m ² (one hundred thousand square meters)
11.	Central Kalimantan	Palangka Raya City	III	up to 100,000 m ² (one hundred thousand square meters)
12.	Riau Islands, Tanjungpinang	City	III	up to 100,000 m ² (one hundred thousand square meters)
13.	West Nusa Tenggara	Mataram City	III	up to 100,000 m ² (one hundred thousand square meters)
14.	Central Sulawesi	Palu City	III	up to 100,000 m ² (one hundred thousand square meters)
15.	North Sulawesi	Manado City	III	up to 100,000 m ² (one hundred thousand square meters)
16.	Riau Islands, Bintan	Regency	III	up to 100,000 m ² (one hundred thousand square meters)
17.	Banten	All districts/cities in Banten that are not included in Category I and Category II	III	up to 100,000 m ² (one hundred thousand square meters)
18.	West Java	All districts/cities in West Java that are not included in Category I and Category II	III	up to 100,000 m ² (one hundred thousand square meters)

No.	Province Name Regency/City	Location Category Authority		
19.	Central Java	All districts/cities in Central Java that are not included in Category I and Category II	III	up to 100,000 m ² (one hundred thousand square meters)
20.	Special Region of Yogyakarta	All districts/cities in the Special Region of Yogyakarta that are not included in Category I and Category II	III	up to 100,000 m ² (one hundred thousand square meters)
21.	East Java	All districts/cities in East Java that are not included in Category I and Category II	III	up to 100,000 m ² (one hundred thousand square meters)

IV. Category IV for Land Area up to 250,000 m² (Two Hundred and Five Thousand Square Meters)

All district/city areas other than Category I, Category II, and Category III, except the Batam Free Trade Area and Free Port.

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